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Citizen's Commission: Expulsion of the Northern Muslims by the LTTE in October 1990

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on 03/02/201003/02/2010

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Sri Lanka has been increasingly the scene of much ethnic violence. The Northern Muslims are the victims of the earliest large scale act of ethnic cleansing in our history. Close to 80,000 persons, constituting the entire Muslim population of the five Northern Districts of Jaffna, Mannar, Vavuniya, Mullaithivu and Kilinochchi were summarily expelled from the province by the LTTE on one fateful day in October 1990 at a few hours notice. The details of the constraints imposed on the victims varied from location to location depending on the degree of brutality of the local LTTE leadership, but nowhere were those evicted able to sell, transfer or otherwise secure or dispose of their property or to take with them cash or other moveable possessions. The operation was carried out so quickly and with such ruthless efficiency that there was little or no resistance. The state failed to intervene. Sadly, the protests of the national leadership, Tamil and non-Tamil, and of the national and the international community were muted.

“The Law & Society Trust (LST) together with the Community Trust Fund (CTF), the People’s Secretariat (PS) and the Rural Development Foundation (RDF) has setup a Citizen’s Commission to investigate the expulsion of Muslims from the Northern Province by the LTTE in October 1990”. This initiative is a result of the untiring efforts of the Northern Muslim leadership and a few civil society activists coordinated by Dr. Farzana Haniffa. The Terms of Reference of the Commission, of which I am a Member, goes on to set out the objective as “to produce authoritative documentation of expulsion and its consequence”, including in its coverage “the history of the expulsion, the experience of two decades of displacement and expectations, and in some cases the experience of resettlement”.

The largest numbers of those victims were from Mannar district of which I had, much earlier, been Government Agent for 3 years (mid 1965-mid 1968) I have happy memories of close interaction with many families there, both Tamil and Muslim. Inter-ethnic relations in Mannar were a model to the rest of the island. I have visited the district many times in 70s and 80s, and each time I found that inter-ethnic relations continued to be good. There was nothing on the ground to explain why the Northern Muslims were selected by the LTTE for eviction. The distraught evicted persons who I visited in Colombo soon afterwards kept asking it of me and I had no answer. Clearly the reasons were rooted elsewhere. Did the LTTE pick on the Northern Muslims because they were the most vulnerable with no record of ever resisting Tamil leadership?

Immediately after my service in Mannar I served 3 years as GA Batticaloa (mid 1968 – early 1971) and, much later, 3 years as GA Jaffna, then including Kilinochchi (mid 1981- mid 1984). Batticaloa and Jaffna districts also had large Muslim population and there too inter-ethnic relations were very satisfactory. The diversity was salient, e. g. Kattankudy, the largest Muslims town in the island, has very distinctive cultural and economic features sustained over many decades. It was much later that Tamil Muslim conflict in the East was promoted by outsiders who used Muslim home guards, as well as by the LTTE who sought to secure the subjugation of the Muslim population through a series of massacres. Despite these disruptions, most of the Tamil and Muslim populations of the North and East have, by and large, continued to live together in peace. Whenever I go back I feel as comfortable and as welcome in Muslim towns and villages in the North and East as when I was the Government Agent there decades earlier.

All this does not mean that there is no difficulty in reversing ethnic cleansing after a lapse of 20 years. That reversal should have been effected long ago. After a community departs from a locality, their properties progressively degenerate. Further, over the years, others move in to fill the vacant spaces created in the educational,

social, economic and political life of that locality. At the other end, the displaced populations get settled in to their new locations with new neighbours, new schools, new economic and social activities, etc. New relationships get established superseding, in due course the old. The younger generation may have no ties at all binding them to the earlier location. With every passing year, reversal of ethnic cleansing becomes more difficult. Without focussed intervention, very few may go back. The appointment of this Commission is very welcome, though long over due.

The task of reversing ethnic cleansing is difficult but necessary. As I see it, the main task of this Commission is to push for and facilitate the resettlement of displaced Muslims back in the locations from which they were evicted. The displaced population needs to be motivated and helped to return. The conditions, facilities and inducements must therefore be attractive and the obstacles to return must be minimized. Particular attention needs to be paid to promote acceptance of the return on the part of the local communities among whom the returnees will resettle.

It will help to place each particular displacement and the return of the displaced in as broad a context as possible. Every act of ethnic cleansing is unique, and so too the related circumstances. If the issue is seen as a zero sum game between the two communities immediately involved, mobilizing comprehensive support for reversal of ethnic cleansing may pose some difficulties. On the other hand if ethnic cleansing is viewed in a broad context as affecting those of all communities, Sinhalese, Tamils and Muslims, and that policies to counter and reverse ethnic cleansing will bring joint gains to all victims, it would be easier to secure comprehensive backing for such policies. A balance needs to be struck between highlighting the special features of each case and the common features of all ethnic cleansing. The principles on which the remedies to all acts of ethnic cleansing are based should be independent of the ethnicity of the perpetrators and of the victims.

To permit any act of ethnic cleansing to stand would amount to withholding justice from the victims, to rewarding the perpetrators, to encouraging such acts in the future and, above all, to perpetuating a national crime and humiliation. On the other hand, no family or individual can be compelled to return to an inhospitable environment. The focus therefore should be on promoting voluntary return. This requires designing and executing the programmes in close interaction with and the participation of both the displaced communities and local community into which they are to return. A The remedies must be seen by all concerned as a step towards the restoration of the honour, not only of the victims and the perpetrators, but also of those who stood by and let the eviction occur. This Commission could play a lead role in spreading this message in relation to all acts of ethnic cleansing throughout our island.

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